

LEGAL NOTICE NO. 192

REPUBLIC OF TRINIDAD AND TOBAGO

THE FOOD AND DRUGS ACT, CHAP. 30:01

REGULATIONS

MADE BY THE MINISTER UNDER REGULATION 26(2) OF THE
FOOD AND DRUGS ACT

THE FOOD AND DRUGS (AMENDMENT) REGULATIONS, 1999

1. These Regulations may be cited as the Food and Drugs Citation
(Amendment) Regulations, 1999.
2. In these Regulations, “the Regulations” means the Food and
Drugs Regulations. Interpretation
Chap. 30:01
3. Regulation 26 of the Regulations is amended by deleting para-
graph (c) and substituting the following: Regulation 26
amended
 “(c) synthetic sweetener(s) other than those approved by the
 Minister.”.
4. Division 11 of the First Schedule of the Regulations is repealed
and the following Division substituted: First Schedule
amended

“Division 11- Synthetic Sweeteners

1. For the purpose of this Division, “synthetic sweetener”
means a low calorie non-nutritive sweetener which provides
little or no energy while having a high intensity sweetening
purpose.
2. Subject to paragraph 3, the following synthetic
sweeteners shall be deemed to be approved by the Minister:
 - (a) synthetic sweeteners certified by the Food and
Drug Directorate of Canada;
 - (b) synthetic sweeteners certified by the Food and
Drug Administration of the United States of
America;
 - (c) synthetic sweeteners certified for use by the
European Union;
 - (d) synthetic sweeteners approved for use in food by
the Food and Agriculture Organisation of the
United Nations and by the World Health
Organisation; and
 - (e) synthetic sweeteners approved by the Codex
Alimentaries Commission.

3. (1) The Minister may on his own or on the advice of the Food and Advisory Committee withdraw the approval with respect to any synthetic sweetener which may be hazardous to health.

(2) A withdrawal under subregulation (1) shall be by Notice published in the *Gazette*.

(3) Where a Notice has been published with respect to a synthetic sweetener under these Regulations, an approval with respect to that synthetic sweetener shall cease.

(4) The Minister may, on the advice of the Food Advisory Committee stipulates the proportions and conditions for any synthetic sweetener for use in any food.

(5) For the purpose of this Division “carbonated beverage” means a non-alcoholic beverage that is impregnated with carbon dioxide under pressure and is package for sale in hermetically sealed containers.

(6) A carbonated beverage is adulterated if it contains—

- (a) saccharin and salts at levels in excess of 300 parts per million either as a sole sweetener or in combination with any other synthetic sweetener(s);
- (b) aspartame at levels in excess of 1000 parts per million either as a sole sweetener or in combination with any other synthetic sweetener(s);
- (c) acesulfame potassium at levels in excess of 350 parts per million either as a sole sweetener or in combination with any other synthetic sweetener(s);
- (d) sucralose at levels in excess of 250 parts per million either as a sole sweetener or in combination with any other synthetic sweetener(s); or
- (e) any other synthetic sweetener or any combination of synthetic sweetener(s) not approved by the Minister.

4. (1) The label on any carbonated beverage containing saccharin and its salts at levels of 300 parts per million and below either as a sole sweetener or in combination with any other synthetic sweetener(s) shall carry statements to the effect that—

- (a) the beverage is a diet drink;
- (b) the beverage is sugar free; and
- (c) the beverage is low-calorie and carbonated.

(2) The label on any carbonated beverage containing aspartame—

(a) at levels of 1000 parts per million and below either as a sole sweetener or in combination with any other synthetic sweetener(s) shall carry statements to the effect that—

(i) the beverage is a diet drink;

(ii) the beverage is sugar free; and

(iii) the beverage is low-calorie and carbonated;

(b) shall carry a statement to the effect that the beverage contains phenylalanine and should not be taken by persons who are suffering from phenylketonuria.

(3) The label on any carbonated beverage containing acesulfame potassium at levels 350 parts per million and below either as a sole sweetener or in combination with any other synthetic sweetener(s) shall carry statements to the effect that—

(a) the beverage is a diet drink;

(b) the beverage is sugar free; and

(c) the beverage is low-calorie and carbonated.

(4) The label on any carbonated beverage containing sucralose at levels 250 parts per million and below either as a sole sweetener or in combination with any other synthetic sweetener(s) shall carry statements to the effect that:

(a) the beverage is a diet drink;

(b) the beverage is sugar free; and

(c) the beverage is low-calorie and carbonated low-calorie drinks are not recommended for use by children.

5. No person shall set a carbonated beverage that contains—

(a) saccharin and its salts at levels in excess of 300 parts per million either as a sole synthetic sweetener or in combination with any other synthetic sweetener(s);

(b) aspartame at levels in excess of 1000 parts per million as the sole sweetening agent or in combination with any other synthetic sweetener(s);

(c) acesulfame potassium at levels in excess of 350 parts per million either as a sole synthetic sweetener or in combination with any other synthetic sweetener(s);

- (d) sucralose at levels in excess of 250 parts per million either as the sole sweetening agent or in combination with any other synthetic sweetener(s); or
- (e) any other synthetics sweetener or any combination of synthetic sweetener(s) not approved by the Minister.”.

Dated this 17th day of September, 1999.

H. RAFEEQ
Minister of Health